

3.

CASE #	CASE NAME	HEARING NAME
CVPS2602614	GONZALEZ VS LALEZARY LAW FIRM, LLP	MOTION TO COMPEL ARBITRATION BY LALEZARY LAW FIRM, LLP, LAW BROTHERS LLC, SHERVIN LALEZARY, SHAWN LALEZARY -AND JOINDER- NOTICE OF JOINDER BY DEFENDANT LALEZARY, LLC IN DEFENDANTS' MOTION TO COMPEL ARBITRATION

Tentative Ruling: Because a motion to transfer venue operates as a stay of any other motion or pending proceeding (*Pitwick Stages System v. Superior Court in and for Los Angeles County* (1934) 138 Cal.App. 448, 449), the court must rule on the motion to transfer venue first. Once the court grants the motion to transfer venue, the transferor court loses jurisdiction and the transferee court must rule on any proceedings after it receives the file. (See *London v. Morrison* (1950) 99 Cal.App.2d 876, 879-880.) As a result, there is no jurisdiction to rule on the motion to compel arbitration.

Motion to Compel Arbitration and Joinder by Defendant Lalezary, LLC continued to 10.22.26 pending transfer to Los Angeles County Superior Court.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2602614	GONZALEZ VS LALEZARY LAW FIRM, LLP	MOTION FOR CHANGE OF VENUE ON COMPLAINT FOR PROFESSIONAL NEGLIGENCE OF JENNIE LYNN GONZALEZ BY LALEZARY LAW FIRM, LLP, LAW BROTHERS LLC, SHERVIN LALEZARY, SHAWN LALEZARY

Tentative Ruling: Code of Civil Procedure section 397 provides the court may transfer venue upon motion. The burden is on the moving party to establish whatever facts are needed to justify transfer. (*Mission Imports, Inc. v. Superior Court (Monterey Bay Co., Inc.)* (1982) 31 Cal.3d 921, 929; *Los Angeles v. Pac. Tel. & Tel. Co.* (1958) 164 Cal.App.2d 253, 260.) Venue is determined based on the complaint on file at the time the motion to change venue is made. (*Brown v. Superior Court (C.C. Myers, Inc.)* (1984) 37 Cal.3d 477, 482.) The general rule is that unless otherwise provided by law, a defendant is entitled to have an action tried in the county of his or her residence. (*Id.* at 483; *Capp Care, Inc. v. Superior Court* (1987) 195 Cal.App.3d 504, 507-508; Code Civ. Pro. § 395.) For venue purposes, actions are either local or transitory. (*Brown*, supra, 37 Cal.3d at 482 fn. 5.) To determine whether it is local or transitory, the court looks to the main relief sought with personal relief is transitory and real property is local. (*Ibid.*) Local venue is also provided by special statutes that prescribe local venue for certain proceedings. (*Capp Care*, supra, 195 Cal.App.3d at 508.)

First, as to the JAMS Defendants, their inclusion is irrelevant. As Defendants filed this motion on 5/18/26, the original complaint was in effect and therefore is dispositive. The original complaint did not include the JAMS Defendants.

Second, as to the venue clause provision, there is a split of authority. In *Alexander v. Superior Court* (2003) 114 Cal.App.4th 723, 731-732, the Sixth District held that a venue selection clause was void as against public policy. In contrast, *Battaglia Enterprises, Inc. v. Superior Court* (2013) 215 Cal.App.4th 309, 315-318 rejected *Alexander* and held that a venue selection clause was valid and enforceable if it satisfied the statutory venue clauses.

Thus, the correct issue is where is venue proper. Here, Defendants demonstrate that venue is correct in Los Angeles County as they reside there. (Code Civ. Pro. § 395(a).) (Lalezary Decl. ¶¶2.) The action is transitory as the Plaintiff's claims relate to legal malpractice. This is not an action for personal injury or death, personal property injury, or breach of contract, where venue may be proper at the location of where the injury occurred, or where the contract was entered or to be performed. (Code Civ. Pro. § 395(a).) Plaintiff does not provide any alternative venue statutes which would indicate Riverside County would be a proper venue. This is a legal malpractice action—not an action to litigate the underlying car accident. Thus, Los Angeles County is the proper venue.

Motion to Transfer Venue GRANTED.

Case ordered transferred out to Los Angeles County Superior Court.

Riverside County Superior Court ordered to prepare a transfer of file packet and Defendants to file proposed transfer order within 20 days of this order.

Defendants to pay Transfer Fee of \$50 payable to Riverside County Superior Court, to be submitted within 20 days.